

POLITY 01 | HISTORICAL BACKGROUND OF THE INDIAN CONSTITUTION

COMPANY TRADE → PARLIAMENTARY CONTROL → DUAL CONTROL → CROWN RULE → REPRESENTATION → AUTONOMY → SOVEREIGNTY

PRIMARY CORE FLOWS CHRONOLOGICALLY; ENRICHMENT FOLLOWS ONLY AFTER THE CONSTITUTIONAL SPINE.

1

CORPORATE STATE BEFORE 1773

COMPANY: TRADE + TERRITORIAL POWER NO SETTLED PARLIAMENTARY CONTROL BENGAL CRISIS -> REGULATION

CONTROL / CLAIM

Company commercial rule acquired governmental functions.

FUNCTION / MECHANISM

Defect: private corporation exercised public power without constitutional accountability.

CONSEQUENCE / TRAP

Consequence: Parliament intervenes, not because Company ceased to trade.

ANSWER SPINE: Corporate power first produced the need for statutory control.

2

REGULATING ACT 1773

GOVERNOR-GENERAL OF BENGAL COUNCIL: 4 MEMBERS CALCUTTA SUPREME COURT CONTROL STILL IMPERFECT

CONTROL / CLAIM

Bengal presidency made supervisory centre over Bombay and Madras.

FUNCTION / MECHANISM

Governor-General in Council and Supreme Court created dual authorities.

CONSEQUENCE / TRAP

Defect: jurisdictional conflict and weak central control remained.

ANSWER SPINE: 1773 begins regulation, but did not create a coherent central government.

3

SETTLEMENT ACT 1781

COURT JURISDICTION CLARIFIED REVENUE ACTS PROTECTED EXECUTIVE-JUDICIARY BOUNDARY

CONTROL / CLAIM

Clarified Supreme Court limits over revenue administration.

FUNCTION / MECHANISM

Protected acts done in public/revenue capacity from ordinary court interference.

CONSEQUENCE / TRAP

Bridge: exposed why Parliament needed a control system above ad-hoc clarification.

ANSWER SPINE: 1781 repaired the 1773 court-executive conflict; it did not settle political control.

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PITT'S INDIA ACT 1784

DUAL CONTROL BOARD OF CONTROL = GOVERNMENT COURT OF DIRECTORS = COMMERCE

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CONTROL / CLAIM

BOARD OF CONTROL: political, civil, military and revenue government.

FUNCTION / MECHANISM

COURT OF DIRECTORS: commercial administration retained.

CONSEQUENCE / TRAP

Consequence: Company survived commercially; British Government gained decisive state supervision.

ANSWER SPINE: Pitt's Act separated commercial management from sovereign supervision.

5

1786 + CHARTER ACT 1793

1786: GOVERNOR-GENERAL POWER 1793: COMPANY MONOPOLY RENEWED CENTRALISING TREND

CONTROL / CLAIM

1786 strengthened Governor-General where council opposition obstructed policy.

FUNCTION / MECHANISM

1793 renewed monopoly without altering dual-control principle.

CONSEQUENCE / TRAP

Direction: executive capacity and Parliamentary oversight deepened together.

ANSWER SPINE: The early Charter phase retained Company commerce while tightening imperial direction.

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CHARTER ACT 1813

MONOPOLY ENDS: INDIA TRADE TEA + CHINA EXCEPTED MISSION + EDUCATION OPENING

CONTROL / CLAIM

Ended Company monopoly in Indian trade; tea/China remained excepted.

FUNCTION / MECHANISM

Opened India to other British merchants and missionaries.

CONSEQUENCE / TRAP

Marked Company shift from trader toward governing agency.

ANSWER SPINE: 1813 weakened commercial exclusivity without yet ending Company rule.

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CHARTER ACT 1833

ALL-INDIA GOVERNMENT BENGAL GG -> GOVERNOR-GENERAL OF INDIA COMPANY COMMERCIAL ROLE ENDS LAW MEMBER

CONTROL / CLAIM

Centralised legislative power under Governor-General of India.

FUNCTION / MECHANISM

Company ceased commercial functions; remained administrative instrument.

CONSEQUENCE / TRAP

Law Member/legislative machinery signalled uniform imperial governance.

ANSWER SPINE: 1833 converted the Company from trader-ruler into a governing instrument.

CHARTER ACT 1853

8

ANSWER SPINE: 1833 converted the Company from trader-ruler into a governing instrument.

CHARTER ACT 1853

LEGISLATIVE-EXECUTIVE SEPARATION OPEN COMPETITIVE CIVIL SERVICE NO FIXED RENEWAL

CONTROL / CLAIM

Separated legislative functions of Governor-General's Council.

FUNCTION / MECHANISM

Opened civil-service competition in principle.

CONSEQUENCE / TRAP

No fixed twenty-year renewal: Company tenure became provisional.

ANSWER SPINE: 1853 made the Company constitutional machinery awaiting replacement.

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GOVERNMENT OF INDIA ACT 1858

CROWN RULE COMPANY ABOLISHED SECRETARY OF STATE VICEROY

CONTROL / CLAIM

Company rule ended after 1857; Crown assumed government.

FUNCTION / MECHANISM

Secretary of State in Council replaced Board/Court control machinery.

CONSEQUENCE / TRAP

Governor-General became Viceroy: imperial executive now directly responsible to Crown.

ANSWER SPINE: 1858 replaces Company governance with Crown responsibility, not representative government.

10

COUNCILS ACTS 1861 + 1892

1861: PORTFOLIOS + NOMINATION 1892: INDIRECT ELECTION ELEMENT ASSOCIATION, NOT RESPONSIBILITY

CONTROL / CLAIM

1861 restored legislative councils and recognised portfolio administration.

FUNCTION / MECHANISM

1892 enlarged councils and introduced an indirect electoral principle.

CONSEQUENCE / TRAP

Limit: executives remained unresponsive to elected Indians.

ANSWER SPINE: Councils widened consultation; they did not yet transfer executive responsibility.

11

1909 + 1919

1909: COMMUNAL ELECTORATES 1919: DYARCHY IN PROVINCES CENTRE STILL RESPONSIBLE TO BRITAIN

CONTROL / CLAIM

1909 institutionalised separate communal electorates.

FUNCTION / MECHANISM

1919 split provincial subjects: transferred ministers versus reserved Governor control.

CONSEQUENCE / TRAP

Responsible government remained partial and provincial, not central.

ANSWER SPINE: 1909 changed representation; 1919 tested limited responsibility through dyarchy.

CONTROL / CLAIM

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FUNCTION / MECHANISM

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GOVERNMENT OF INDIA ACT 1935

FEDERAL SCHEME 3 LEGISLATIVE LISTS PROVINCIAL AUTONOMY GOVERNOR SAFEGUARDS

CONTROL / CLAIM

Proposed federation; federal part did not fully operate.

FUNCTION / MECHANISM

Federal, provincial and concurrent lists structured legislative power.

CONSEQUENCE / TRAP

Provincial autonomy expanded, but Governors retained safeguards/discretion.

ANSWER SPINE: 1935 supplied the institutional grammar later adapted by the Constitution.

INDEPENDENCE ACT 1947

SOVEREIGN DOMINIONS PARAMOUNTCY LAPSED CONSTITUENT ASSEMBLIES SOVEREIGN

CONTROL / CLAIM

Created India and Pakistan as independent Dominions.

FUNCTION / MECHANISM

Lapsed British paramountcy over princely states.

CONSEQUENCE / TRAP

Constituent Assembly acquired sovereign law-making authority.

ANSWER SPINE: 1947 ends imperial constitutional control and opens constitution-making sovereignty.

FINAL SYNTHESIS — THE CONSTITUTIONAL EVOLUTION

COMPANY TRADE → PARLIAMENTARY CONTROL → DUAL CONTROL → CROWN RULE → ASSOCIATION → REPRESENTATION → PROVINCIAL RESPONSIBILITY → FEDERATION/AUTONOMY → SOVEREIGNTY

EXAM ROUTE: distinguish regulation from responsibility; commercial administration from political control; provincial autonomy from sovereign federalism.